

CONTRACT FOR DIFFERENCE - POWER PURCHASE AGREEMENT

IBERIAN SOLAR CfD PORTFOLIO

CONTRACT NO. ISC-2025-0892

DATE OF EXECUTION: 15 April 2025

BETWEEN:

(1) HELIOS IBERICA SOLAR S.L., a limited liability company (sociedad limitada) organized under the laws of the Kingdom of Spain, with registered office at Paseo de la Castellana 95, Planta 15, 28046 Madrid, Spain, registered with the Mercantile Registry of Madrid under Volume 41283, Folio 112, Section 8, Sheet M-731492, and holding CIF number B-88472913 (hereinafter referred to as the "Seller"); and

(2) EUROPEAN INDUSTRIAL CONSORTIUM GmbH, a limited liability company (Gesellschaft mit beschränkter Haftung) organized under the laws of the Federal Republic of Germany, with registered office at Friedrichstrasse 68, 10117 Berlin, Germany, registered with the Commercial Register (Handelsregister) of the Local Court (Amtsgericht) of Berlin-Charlottenburg under HRB 224817 (hereinafter referred to as the "Buyer").

The Seller and the Buyer are hereinafter individually referred to as a "Party" and collectively as the "Parties".

RECITALS

WHEREAS the Seller owns and operates a portfolio of two (2) utility-scale solar photovoltaic generating plants located in the Kingdom of Spain with a combined installed peak capacity of 500 MWp (the "Facilities"), consisting of:

(a) Extremadura Solar Plant (300 MWp), located in the municipality of Trujillo, Province of Caceres, Autonomous Community of Extremadura, Spain ("Facility Alpha"); and

(b) Andalucia Solar Plant (200 MWp), located in the municipality of Ecija, Province of Seville, Autonomous Community of Andalucia, Spain ("Facility Beta");

WHEREAS the Buyer wishes to enter into a financial hedging arrangement to stabilize the cost of electricity procured from the Iberian wholesale market

for the benefit of its industrial consortium members across Germany, France, and the Netherlands;

WHEREAS this Contract for Difference (the "CfD") is a purely financial instrument under which no physical delivery of electricity shall occur between the Parties, and settlement shall be based on the difference between a fixed Strike Price and the variable market reference price as published by the Iberian electricity market operator (OMIE);

NOW, THEREFORE, in consideration of the mutual covenants and agreements herein contained, the Parties agree as follows:

ARTICLE 1: DEFINITIONS AND INTERPRETATION

1.1 In this Agreement, unless the context otherwise requires, the following terms shall have the meanings ascribed to them below:

"Annual Reconciliation" has the meaning set forth in Rule EV-2 (Article 10.2).

"Capture Rate" means, for any Settlement Period, the ratio of the production-weighted average market price received by the Facilities to the baseload average OMIE day-ahead price for the same period, as further defined in Rule VT-3 (Article 9.4).

"CNMC" means the Comision Nacional de los Mercados y la Competencia, the Spanish national regulatory authority responsible for the GoO registry.

"COD" or "Commercial Operation Date" has the meaning set forth in Rule EV-1 (Article 10.1).

"Contracted Volume" has the meaning set forth in Rule VT-1 (Article 9.1).

"CfD Settlement Amount" has the meaning set forth in Rule PY-1 (Article 7.1).

"Curtailment Threshold" has the meaning set forth in Rule ED-3 (Article 5.4).

"Environmental Attributes" means all Guarantees of Origin and other renewable energy certificates issued in respect of the Facilities'

generation, as described in Rule CD-1 (Article 6.1).

"Force Majeure Event" has the meaning set forth in Rule EV-4 (Article 10.5).

"GoO" means a Guarantee of Origin issued pursuant to Directive (EU) 2018/2001 and Spanish Royal Decree 1955/2000 (as amended).

"Grid Connection Point" means the point of interconnection between each Facility and the Red Electrica de Espana (REE) transmission network, as specified in Schedule A.

"Negative Price Period" has the meaning set forth in Rule ED-3 (Article 5.4).

"OMIE Day-Ahead Price" means the hourly marginal price determined by the Iberian electricity market operator (Operador del Mercado Iberico de Energia - Polo Espanol S.A.) for the Spanish zone, as published on www.omie.es, and used as the Reference Price under Rule PM-2 (Article 8.2).

"Plant-Weighted Average Price" has the meaning set forth in Rule PM-3 (Article 8.3).

"Reference Price" has the meaning set forth in Rule PM-2 (Article 8.2).

"Settlement Period" means one (1) calendar month.

"Strike Price" means EUR 42.50 per MWh, as specified in Rule PM-1 (Article 8.1).

"Term" has the meaning set forth in Article 2.1.

1.2 References to an "Article" or "Rule" are to articles and rules of this Agreement. References to a "Schedule" are to the schedules attached hereto and forming an integral part of this Agreement.

1.3 Where this Agreement refers to legislation, such reference shall include any successor legislation, amendment, or re-enactment thereof.

ARTICLE 2: TERM AND CONDITIONS PRECEDENT

2.1 This Agreement shall become effective on the date of execution (the "Effective Date") and shall remain in force for a period of fifteen (15)

years commencing on 1 January 2025 and expiring on 31 December 2040 (the "Term"), subject to earlier termination in accordance with Rule EV-5 (Article 10.6).

2.2 Both Facilities have achieved COD prior to the Effective Date. Facility Alpha achieved COD on 15 September 2024 and Facility Beta achieved COD on 1 November 2024, as certified under Rule EV-1 (Article 10.1).

2.3 Financial settlement under Rule PY-1 (Article 7.1) shall commence on 1 January 2025 (the "Settlement Start Date") regardless of the Effective Date, with settlement for any period between the Settlement Start Date and the Effective Date to be calculated retroactively and settled within thirty (30) days of the Effective Date.

ARTICLE 3: REPRESENTATIONS AND WARRANTIES

3.1 Each Party represents and warrants to the other that: (a) it is duly organized and validly existing under the laws of its jurisdiction of incorporation; (b) it has full corporate power and authority to execute and perform this Agreement; (c) this Agreement constitutes a legal, valid, and binding obligation enforceable in accordance with its terms; and (d) it holds all necessary regulatory authorizations, including any required under MiFID II for financial energy instruments.

3.2 The Seller additionally represents and warrants that: (a) the Facilities are duly registered in the RAIPRE (Registro Administrativo de Instalaciones de Produccion de Energia Electrica) maintained by the Spanish Ministry of Ecological Transition; (b) the Facilities are eligible for GoO issuance through the CNMC registry pursuant to Rule CD-1 (Article 6.1); (c) the Facilities are not receiving any regulated remuneration under Royal Decree 413/2014 or its successors that would conflict with this Agreement; (d) the Environmental Attributes have not been committed to any third party and shall be exclusively available to the Buyer pursuant to Rule CD-1 (Article 6.1).

3.3 The Buyer represents and warrants that: (a) it has the financial capacity and creditworthiness to perform its payment obligations throughout the Term, as evidenced by the credit support arrangements in Rule PY-5 (Article 7.6); (b) it enters into this Agreement as principal and not as agent for any undisclosed third party.

ARTICLE 4: OVERVIEW AND STRUCTURE

4.1 RULE OV-1 (CfD Mechanism): This Agreement is a financial Contract for Difference under which no physical delivery of electricity occurs between the Parties. The Seller sells the Facilities' output into the OMIE day-ahead market independently. The Parties settle financially based on the difference between the Strike Price defined in Rule PM-1 (Article 8.1) and the Reference Price defined in Rule PM-2 (Article 8.2), applied to the Contracted Volume determined under Rule VT-1 (Article 9.1). If the Reference Price exceeds the Strike Price, the Seller pays the Buyer the difference. If the Strike Price exceeds the Reference Price, the Buyer pays the Seller the difference. Settlement mechanics are specified in Rule PY-1 (Article 7.1).

Linked Rules: PM-1, PM-2, VT-1, PY-1.

4.2 RULE OV-2 (Shape Risk Allocation): The Buyer bears the capture rate risk inherent in solar generation. Settlement under Rule PY-1 (Article 7.1) is based on the Plant-Weighted Average Price calculated under Rule PM-3 (Article 8.3), not the baseload average OMIE price. This means the effective Reference Price reflects the actual hourly price profile during which the Facilities generate, which for solar assets is typically lower than the flat baseload average due to the solar merit-order effect. The Buyer acknowledges this risk and has reflected it in the Strike Price agreed under Rule PM-1 (Article 8.1). The Capture Rate is tracked and reported under Rule VT-3 (Article 9.4).

Linked Rules: PY-1, PM-3, PM-1, VT-3.

4.3 RULE OV-3 (Regulatory Framework): This Agreement is subject to Spanish electricity market regulations, including but not limited to: (a) Ley 24/2013 del Sector Electrico; (b) Real Decreto 413/2014 on renewable energy remuneration; (c) OMIE market rules; and (d) EU Directive 2018/2001 on renewable energy. Regulatory changes are addressed under Rule EV-3 (Article 10.4). The Parties acknowledge that the Spanish energy regulatory landscape is subject to ongoing reform and have incorporated specific protections in Rule EV-3 to address potential impacts on the pricing under Rule PM-1 (Article 8.1), the certificate regime under Rule CD-1 (Article 6.1), and the volume measurement framework under Rule VT-1 (Article 9.1).

Linked Rules: EV-3, PM-1, CD-1, VT-1.

ARTICLE 5: ELECTRICITY DELIVERY

5.1 RULE ED-1 (Generation and Market Sale): The Seller shall operate the Facilities in accordance with Good Industry Practice and shall sell all generated electricity into the OMIE day-ahead market. The Seller shall use commercially reasonable efforts to maximize generation subject to (a) equipment limitations, (b) grid constraints, (c) scheduled maintenance under Rule ED-4 (Article 5.5), (d) Force Majeure under Rule EV-4 (Article 10.5), and (e) the negative pricing curtailment provisions of Rule ED-3 (Article 5.4). As this is a financial CfD, the Seller retains full operational control over dispatch decisions, and the Buyer has no right to direct or constrain generation except as expressly provided in Rule ED-3 (Article 5.4).

Linked Rules: ED-3, ED-4, EV-4, VT-1.

5.2 RULE ED-2 (Grid Connection and Curtailment): Each Facility is connected to the REE transmission network at the Grid Connection Points specified in Schedule A. In the event of grid curtailment ordered by REE (the Spanish TSO), curtailed volumes shall be excluded from the Contracted Volume for CfD settlement under Rule PY-1 (Article 7.1). However, curtailed volumes shall be included in the annual production assessment under Rule VT-2 (Article 9.3) at the deemed generation rate, calculated as the solar irradiance-based expected production for the curtailed hours using data from the Facility's pyranometer array, provided that the curtailment was not caused by the Seller's breach of grid code obligations. Grid curtailment data shall be reported to the Buyer monthly as part of the production report under Rule VT-4 (Article 9.5).

Linked Rules: PY-1, VT-2, VT-4, ED-1.

5.3 RULE ED-3 (Negative Pricing Curtailment): When the OMIE day-ahead price as determined under Rule PM-2 (Article 8.2) falls below negative twenty euros per megawatt-hour (-EUR 20.00/MWh) (the "Curtailment Threshold") for six (6) or more consecutive hours (a "Negative Price Period"), the Seller may, at its sole discretion, curtail generation during the Negative Price Period. Any volumes curtailed during a Negative Price Period shall be excluded from the Contracted Volume under Rule VT-1 (Article 9.1) and shall not be subject to CfD settlement under Rule PY-1 (Article 7.1). The Seller shall notify the Buyer within 24 hours of any

curtailment decision under this Rule ED-3, specifying the hours affected and the estimated curtailed volume. For the avoidance of doubt, the Seller is not obligated to curtail during a Negative Price Period and may choose to continue generating, in which case normal settlement under Rule PY-1 shall apply to those hours. The six-hour consecutive threshold is calculated based on the final OMIE day-ahead prices published for the delivery day under Rule PM-2.

Linked Rules: PM-2, VT-1, PY-1, ED-1, PM-4.

5.4 RULE ED-4 (Scheduled Maintenance): The Seller shall conduct scheduled maintenance in accordance with manufacturer recommendations and Good Industry Practice. The Seller shall provide the Buyer with: (a) an annual maintenance schedule by 1 December of each year for the following calendar year; (b) written notice at least twenty-one (21) days prior to any scheduled maintenance expected to reduce generation by more than 15% of peak capacity for any Facility. Scheduled maintenance shall be planned during months of lower irradiance (November through February) to the extent commercially practicable. Maintenance outage hours shall be excluded from the capacity factor and availability calculations under Rule VT-3 (Article 9.4) and the annual production assessment under Rule VT-2 (Article 9.3).

Linked Rules: ED-1, VT-3, VT-2.

5.5 RULE ED-5 (Metering and Data Provision): Net generation at each Grid Connection Point shall be measured by fiscal metering equipment installed and maintained in accordance with Spanish metering regulations (ITC-BT-04 and Real Decreto 1110/2007). Hourly production data shall be sourced from REE's ESIOs platform (Sistema de Informacion del Operador del Sistema) and cross-referenced with the Seller's SCADA system data. Monthly metering reports shall be delivered to the Buyer within seven (7) business days of the end of each Settlement Period. Metered data forms the basis for the Contracted Volume under Rule VT-1 (Article 9.1), the Plant-Weighted Average Price calculation under Rule PM-3 (Article 8.3), and the GoO volume reconciliation under Rule CD-1 (Article 6.1). Metering disputes exceeding a threshold of 1.0% of monthly output shall be resolved under Article 12.

Linked Rules: VT-1, PM-3, CD-1, PY-1.

ARTICLE 6: CERTIFICATE DELIVERY

6.1 RULE CD-1 (GoO Delivery Obligation): The Seller shall transfer to the Buyer Guarantees of Origin corresponding to 100% of the Contracted Volume for each Settlement Period, via the CNMC-administered GoO registry (Sistema de Garantias de Origen). GoOs shall identify the technology (solar photovoltaic), the specific Facility (identified by CIL code), and the production period. The Seller warrants exclusive transfer rights and confirms that the Facilities are not enrolled in any national support scheme that would preclude GoO issuance. The GoO delivery obligation is linked to the Contracted Volume determination under Rule VT-1 (Article 9.1) and forms a core component of the Annual Reconciliation under Rule EV-2 (Article 10.2).

Linked Rules: VT-1, EV-2, CD-2, CD-3, ED-5.

6.2 RULE CD-2 (Delivery Schedule and Vintage Bundling): GoOs shall be delivered annually, bundled by calendar year vintage. The Seller shall transfer all GoOs for a given calendar year to the Buyer's designated CNMC registry account no later than 31 March of the following calendar year (the "Certificate Delivery Deadline"). This annual delivery schedule reflects the CNMC's GoO issuance cycle, whereby GoOs are typically issued on a quarterly basis but may be subject to verification delays. The Seller shall use best efforts to deliver GoOs on a quarterly interim basis where the CNMC registry permits, but the binding delivery obligation is the annual Certificate Delivery Deadline. Late delivery penalties are specified in Rule PY-4 (Article 7.5).

Linked Rules: CD-1, PY-4, VT-1, EV-2.

6.3 RULE CD-3 (Certificate Shortfall and Replacement): If the Seller is unable to deliver GoOs corresponding to the full Contracted Volume for any calendar year vintage by the Certificate Delivery Deadline under Rule CD-2 (Article 6.2), the Seller shall, within sixty (60) days: (a) procure replacement GoOs of equivalent technology (solar photovoltaic) and vintage (same calendar year) from Spanish or Portuguese generating facilities registered with CNMC or ERSE (the Portuguese regulator), respectively; or (b) if replacement GoOs are unavailable, pay the Buyer a certificate shortfall payment equal to the undelivered GoO volume multiplied by the average GoO auction price published by OMIP (Operador do Mercado Iberico de Energia - Polo Portugues) for Spanish solar GoOs of the relevant vintage, plus a twenty percent (20%) premium. The shortfall payment under this Rule CD-3 is additional to and independent from the CfD Settlement Amount under Rule PY-1 (Article 7.1) and the

late delivery penalty under Rule PY-4 (Article 7.5).

Linked Rules: CD-2, CD-1, PY-1, PY-4, VT-2.

ARTICLE 7: PAYMENT AND SETTLEMENT

7.1 RULE PY-1 (CfD Settlement Calculation): For each Settlement Period, the CfD Settlement Amount shall be calculated as follows:

CfD Settlement Amount = Contracted Volume x (Strike Price
- Plant-Weighted Average Price)

where:

- Contracted Volume is the total metered net generation (in MWh) across both Facilities for the Settlement Period, as determined under Rule VT-1 (Article 9.1), excluding volumes curtailed under Rule ED-3 (Article 5.4) and grid curtailment under Rule ED-2 (Article 5.3);
- Strike Price is EUR 42.50/MWh as defined in Rule PM-1 (Article 8.1), subject to any adjustment under Rule EV-3 (Article 10.4);
- Plant-Weighted Average Price is the production-weighted average OMIE day-ahead price, calculated under Rule PM-3 (Article 8.3).

If the CfD Settlement Amount is positive, the Buyer shall pay the Seller (i.e., the market price was below the Strike Price). If negative, the Seller shall pay the Buyer (i.e., the market price exceeded the Strike Price). Settlement is on a monthly financial basis with no physical delivery component.

Linked Rules: VT-1, ED-3, ED-2, PM-1, PM-3, EV-3.

7.2 RULE PY-2 (Invoicing and Payment Terms): The paying Party (as determined by the sign of the CfD Settlement Amount under Rule PY-1) shall issue a settlement statement to the other Party within fifteen (15) business days after receipt of final metered data for each Settlement Period. The settlement statement shall include: (a) hourly Contracted Volume by Facility; (b) hourly OMIE day-ahead prices; (c) Plant-Weighted Average Price calculation; (d) CfD Settlement Amount. Payment shall be due within twenty-five (25) business days of the settlement statement date, by SEPA credit transfer to the account specified in Schedule C. Late payments shall accrue interest at EURIBOR 6-month plus 2.50% per annum, calculated on an ACT/360 day-count basis. The invoicing process depends on timely metering data delivery under Rule ED-5 (Article 5.5) and price

publication under Rule PM-2 (Article 8.2).

Linked Rules: PY-1, ED-5, PM-2, PM-3.

7.3 RULE PY-3 (Annual Volume True-Up Payment): If the aggregate Contracted Volume for any calendar year falls below the Minimum Annual Production threshold specified in Rule VT-2 (Article 9.3), the Seller shall pay the Buyer a Volume True-Up Payment calculated as:

True-Up Payment = (Minimum Annual Production - Actual Annual Volume)
x Strike Price x 0.35

where Strike Price is as defined in Rule PM-1 (Article 8.1). This payment compensates the Buyer for the reduced hedging benefit when production underperforms expectations. Volumes excluded from Contracted Volume due to Force Majeure under Rule EV-4 (Article 10.5), grid curtailment under Rule ED-2 (Article 5.3), and negative pricing curtailment under Rule ED-3 (Article 5.4) shall be added back to Actual Annual Volume for purposes of this calculation. The True-Up Payment is calculated and settled as part of the Annual Reconciliation under Rule EV-2 (Article 10.2).

Linked Rules: VT-2, PM-1, EV-4, ED-2, ED-3, EV-2.

7.4 RULE PY-4 (Certificate Late Delivery Penalty): If the Seller fails to deliver GoOs by the Certificate Delivery Deadline specified in Rule CD-2 (Article 6.2), the Seller shall pay a late delivery penalty of EUR 0.75 per MWh per calendar month of delay (or part thereof), applied to the volume of GoOs not yet delivered. The penalty accrues from the Certificate Delivery Deadline until the earlier of: (a) actual delivery of the GoOs, or (b) payment of the certificate shortfall amount under Rule CD-3 (Article 6.3). This penalty is separate from and cumulative with the certificate shortfall payment under Rule CD-3 and the CfD Settlement Amount under Rule PY-1 (Article 7.1).

Linked Rules: CD-2, CD-3, PY-1, CD-1.

7.5 RULE PY-5 (Netting and Credit Support): Settlement Amounts due in the same direction for a given Settlement Period shall be netted. The Party with the larger aggregate net exposure (determined quarterly on a mark-to-market basis) shall post collateral in the form of a bank guarantee or standby letter of credit equal to the greater of (a) three (3) months' estimated CfD Settlement Amounts based on forward OMIE prices and projected generation under Rule VT-4 (Article 9.5), or (b) EUR 3,000,000. Collateral shall be issued by a financial institution with

a minimum credit rating of BBB+ (S&P) or Baa1 (Moody's). Credit support requirements are reviewed annually as part of the Annual Reconciliation under Rule EV-2 (Article 10.2).

Linked Rules: PY-1, VT-4, EV-2, EV-5.

7.6 RULE PY-6 (Tax Gross-Up): All payments under this Agreement shall be made free and clear of any withholding or deduction for taxes. If either Party is required by law to make any such deduction, the paying Party shall gross up the payment such that the receiving Party receives the full amount it would have received absent such deduction. Each Party shall use commercially reasonable efforts to minimize withholding taxes, including by claiming relief under the Spain-Germany double tax treaty. Tax adjustments affect the net Settlement Amount under Rule PY-1 (Article 7.1) and are reconciled as part of the Annual Reconciliation under Rule EV-2 (Article 10.2).

Linked Rules: PY-1, EV-2, PY-2.

ARTICLE 8: PRICE INDEXATION AND MARKET DATA

8.1 RULE PM-1 (Strike Price): The Strike Price shall be EUR 42.50 per MWh, fixed for the duration of the Term, subject only to (a) adjustments arising from a Regulatory Change Event under Rule EV-3 (Article 10.4), and (b) the CPI escalation mechanism in Rule PM-4 (Article 8.4). The Strike Price reflects the Seller's levelized cost of energy and the Buyer's assessment of long-term Iberian wholesale price expectations. The Strike Price is applied in the CfD Settlement Calculation under Rule PY-1 (Article 7.1) and the Volume True-Up Payment under Rule PY-3 (Article 7.4).

Linked Rules: PY-1, PY-3, EV-3, PM-4.

8.2 RULE PM-2 (Reference Price - OMIE Day-Ahead): The Reference Price for each hour shall be the OMIE day-ahead marginal price for the Spanish zone, as published by OMIE on www.omie.es by 13:00 CET D-1 (following the daily market coupling session). The Reference Price constitutes the market benchmark against which the CfD settles. It is used directly in the Plant-Weighted Average Price calculation under Rule PM-3 (Article 8.3) and indirectly in the CfD Settlement under Rule PY-1 (Article 7.1). The Reference Price also determines the applicability of the negative pricing curtailment provision under Rule ED-3

(Article 5.4).

Linked Rules: PM-3, PY-1, ED-3, PM-4.

8.3 RULE PM-3 (Plant-Weighted Average Price): For each Settlement Period, the Plant-Weighted Average Price ("PWAP") shall be calculated as:

$$\text{PWAP} = \frac{\text{SUM}(h=1 \text{ to } H) [\text{Reference Price}(h) \times \text{Portfolio Output}(h)]}{\text{SUM}(h=1 \text{ to } H) [\text{Portfolio Output}(h)]}$$

where:

- Reference Price(h) is the OMIE day-ahead price for hour (h) per Rule PM-2 (Article 8.2);
- Portfolio Output(h) is the combined metered output of both Facilities for hour (h) per Rule VT-1 (Article 9.1);
- H is the total number of hours in the Settlement Period.

The PWAP captures the solar generation profile and represents the effective market price the Facilities achieve. The PWAP is used as the variable price component in the CfD Settlement under Rule PY-1 (Article 7.1). This approach means the Buyer bears capture rate risk, as acknowledged in Rule OV-2 (Article 4.2), since the PWAP will typically be lower than the flat time-weighted average OMIE price due to the midday solar production concentration and merit-order cannibalization effect. The PWAP methodology also interacts with the negative pricing curtailment provision under Rule ED-3 (Article 5.4): hours in which the Seller curtails under Rule ED-3 are excluded from both the numerator and denominator of the PWAP calculation.

Linked Rules: PM-2, VT-1, PY-1, OV-2, ED-3.

8.4 RULE PM-4 (CPI Escalation): The Strike Price shall be adjusted annually on 1 January of each year, commencing 1 January 2027, by seventy percent (70%) of the year-on-year change in the Spanish Consumer Price Index (Indice de Precios al Consumo, "IPC") as published by the Instituto Nacional de Estadística (INE) for the twelve-month period ending 30 September of the preceding year. The adjustment shall be cumulative and compounding. For the avoidance of doubt, the adjustment can result in both increases and decreases to the Strike Price. The escalated Strike Price shall be used in all settlement calculations under Rule PY-1 (Article 7.1) from the effective date of adjustment. In the event that the IPC is not published or is discontinued, the Parties shall use the Eurostat Harmonized Index of Consumer Prices (HICP) for Spain as a

substitute. The CPI-adjusted Strike Price also applies to the Volume True-Up calculation under Rule PY-3 (Article 7.4) and the negative pricing threshold assessment interacting with Rule ED-3 (Article 5.4) is NOT adjusted -- the Curtailment Threshold remains at a fixed -EUR 20.00/MWh.

Linked Rules: PM-1, PY-1, PY-3, ED-3, PM-2.

8.5 RULE PM-5 (Market Data Fallback): In the event that OMIE fails to publish the day-ahead price for any hour(s), the Reference Price shall be determined in the following order of priority: (a) the OMIE intraday session 1 price for the same hour(s); (b) the Portuguese MIBEL zone day-ahead price for the same hour(s) as published by OMIE; (c) the average OMIE day-ahead price for the same hour(s) across the preceding seven (7) calendar days; (d) if none of the foregoing are available for more than seventy-two (72) consecutive hours, the Parties shall suspend CfD settlement under Rule PY-1 (Article 7.1) for the affected period and negotiate in good faith a substitute reference price within thirty (30) days. Fallback determinations shall be documented in the settlement statement under Rule PY-2 (Article 7.2).

Linked Rules: PM-2, PY-1, PY-2, VT-1.

ARTICLE 9: VOLUME AND TIMESERIES

9.1 RULE VT-1 (Contracted Volume Measurement): The Contracted Volume for each hour shall be the aggregate net electrical energy (in MWh, to three decimal places) injected by Facility Alpha and Facility Beta at their respective Grid Connection Points, as recorded by the fiscal meters specified in Rule ED-5 (Article 5.5). The following adjustments apply:

(a) transformer losses between inverter output and Grid Connection Point are already reflected in the fiscal meter readings; (b) volumes curtailed under Rule ED-3 (Article 5.4) during a Negative Price Period are excluded;

(c) volumes curtailed due to grid instruction under Rule ED-2 (Article 5.3) are excluded. The Contracted Volume forms the basis for the CfD Settlement under Rule PY-1 (Article 7.1), the Plant-Weighted Average Price under Rule PM-3 (Article 8.3), and the GoO entitlement under Rule CD-1 (Article 6.1).

Linked Rules: ED-5, ED-3, ED-2, PY-1, PM-3, CD-1.

9.2 RULE VT-2 (Minimum Annual Production Guarantee): The Seller guarantees a

Minimum Annual Production equal to eighty percent (80%) of the combined P50 yield estimate for both Facilities (the "Minimum Annual Production").
Based on the P50 estimates in Schedule B:

Facility Alpha (300 MWp): P50 = 525 GWh/yr -> Minimum = 420 GWh/yr
Facility Beta (200 MWp): P50 = 370 GWh/yr -> Minimum = 296 GWh/yr
Portfolio Total: P50 = 895 GWh/yr -> Minimum = 716 GWh/yr

The Minimum Annual Production is assessed annually as part of the Annual Reconciliation under Rule EV-2 (Article 10.2). Failure to meet the Minimum Annual Production triggers the Volume True-Up Payment under Rule PY-3 (Article 7.4). Deemed production for Force Majeure periods under Rule EV-4 (Article 10.5), grid curtailment under Rule ED-2 (Article 5.3), and negative pricing curtailment under Rule ED-3 (Article 5.4) shall be added back for purposes of this assessment.

Linked Rules: EV-2, PY-3, EV-4, ED-2, ED-3, VT-1, ED-4.

9.3 RULE VT-3 (Capture Rate Monitoring): The Seller shall calculate and report to the Buyer monthly the Capture Rate for each Facility and the portfolio, defined as:

$$\text{Capture Rate} = \text{PWAP (per Rule PM-3)} / \text{Time-Weighted Average OMIE Day-Ahead Price}$$

where the Time-Weighted Average OMIE Day-Ahead Price is the simple arithmetic mean of all hourly OMIE day-ahead prices in the Settlement Period. Typical expected Capture Rates for Iberian solar are 75-90% in early years, potentially declining as solar penetration increases. If the trailing twelve-month Capture Rate falls below sixty-five percent (65%), the Buyer may request a market review to assess whether the capture rate decline is structural or temporary, and the Parties shall discuss in good faith any commercially reasonable mitigation measures. The Capture Rate interacts with the shape risk allocation acknowledged in Rule OV-2 (Article 4.2) and affects the effective value of the CfD to the Buyer under Rule PY-1 (Article 7.1).

Linked Rules: PM-3, OV-2, PY-1, VT-1.

9.4 RULE VT-4 (Performance Ratio and Availability): The Seller shall maintain each Facility at a minimum technical availability of ninety-five percent (95%) on a rolling twelve-month basis, excluding scheduled maintenance under Rule ED-4 (Article 5.5) and Force Majeure under Rule EV-4 (Article 10.5). The Performance Ratio (PR) for each Facility shall be

calculated monthly as:

$$PR = \text{Actual Output} / (\text{GHI} \times \text{Panel Area} \times \text{Nominal Efficiency})$$

using Global Horizontal Irradiance (GHI) data from on-site pyranometers and satellite-derived data (Solargis or equivalent). If the trailing twelve-month PR falls below seventy-five percent (75%) for either Facility, the Seller shall commission an Independent Technical Assessment at its cost. Availability and PR data feed into the production assessment under Rule VT-2 (Article 9.3) and the production forecast under Rule VT-5 (Article 9.6).

Linked Rules: ED-4, EV-4, VT-2, VT-5, VT-1.

9.5 RULE VT-5 (Production Forecasting): The Seller shall provide the Buyer with: (a) a day-ahead generation forecast by 10:00 CET D-1, updated at 18:00 CET D-1 following OMIE market results; (b) a monthly generation forecast by the 25th of the preceding month; and (c) an annual generation forecast by 15 November of the preceding year. Forecasts shall specify expected hourly output by Facility and portfolio aggregate. While forecasts do not modify contractual obligations, they enable the Buyer to manage its own hedging positions. Systematic forecast deviation exceeding 25% on a quarterly rolling basis shall trigger a consultation process. Forecast accuracy interacts with the Buyer's exposure management under Rule PY-5 (Article 7.6) and the production guarantees under Rule VT-2 (Article 9.3).

Linked Rules: PY-5, VT-2, VT-4, PM-3.

ARTICLE 10: EVENTS

10.1 RULE EV-1 (Commercial Operation Date Confirmation): Both Facilities have achieved COD prior to the Effective Date. Facility Alpha achieved COD on 15 September 2024, certified by the issuance of the Acta de Puesta en Servicio by the Junta de Extremadura and successful completion of the 72-hour performance test at >98% inverter availability. Facility Beta achieved COD on 1 November 2024, certified by the Junta de Andalucía under equivalent conditions. COD certification confirms that the Facilities satisfy the requirements for GoO issuance under Rule CD-1 (Article 6.1) and that the Contracted Volume under Rule VT-1 (Article 9.1) reflects fully operational plant conditions. Grid Connection Agreements with REE for both Facilities are in full force

and effect as of the Effective Date, as relevant to Rule ED-2 (Article 5.3).

Linked Rules: CD-1, VT-1, ED-2, OV-1.

10.2 RULE EV-2 (Annual Reconciliation): Within one hundred and twenty (120) days after the end of each calendar year, the Parties shall conduct an Annual Reconciliation comprising: (a) verification of aggregate Contracted Volume against the Minimum Annual Production under Rule VT-2 (Article 9.3); (b) calculation and settlement of any Volume True-Up Payment under Rule PY-3 (Article 7.4); (c) reconciliation of GoO deliveries against the Contracted Volume under Rule CD-1 (Article 6.1) and verification of timely delivery under Rule CD-2 (Article 6.2); (d) application of the CPI escalation to the Strike Price under Rule PM-4 (Article 8.4) for the forthcoming calendar year; (e) review of credit support adequacy under Rule PY-5 (Article 7.6); (f) assessment of Capture Rate trends under Rule VT-3 (Article 9.4); and (g) review of any pending Regulatory Change Events under Rule EV-3 (Article 10.4). The Annual Reconciliation statement shall be binding absent manifest error, subject to the dispute resolution procedures in Article 12.

Linked Rules: VT-2, PY-3, CD-1, CD-2, PM-4, PY-5, VT-3, EV-3.

10.3 RULE EV-3 (Regulatory Change): A "Regulatory Change Event" means any change in Spanish or EU law, regulation, government decree, or binding regulatory decision occurring after the Effective Date that directly and materially affects: (a) the OMIE market design or price formation mechanism, impacting the Reference Price under Rule PM-2 (Article 8.2); (b) the GoO issuance, transfer, or recognition regime, impacting certificate delivery under Rule CD-1 (Article 6.1); (c) taxation of renewable energy generation or PPAs (including but not limited to the Spanish 7% generation tax under Ley 15/2012 and any successor levies); (d) grid access or connection charges affecting the economics of the Facilities; (e) the introduction of mandatory curtailment regimes, capacity mechanisms, or renewable energy auctions that directly compete with or constrain the CfD.

Upon the occurrence of a Regulatory Change Event, either Party may serve written notice within ninety (90) days requesting renegotiation of the affected terms, specifically the Strike Price under Rule PM-1 (Article 8.1), the settlement methodology under Rule PY-1 (Article 7.1), or the certificate framework under Rule CD-1 (Article 6.1). If the Parties cannot reach agreement within one hundred and fifty (150) days,

either Party may refer the matter to expert determination under Article 12 or, in cases of fundamental economic disruption, exercise termination rights under Rule EV-5 (Article 10.6).

Linked Rules: PM-2, CD-1, PM-1, PY-1, EV-5, OV-3.

10.4 RULE EV-4 (Force Majeure): A "Force Majeure Event" means any event or circumstance beyond the reasonable control of the affected Party that prevents or materially impairs performance of its obligations, including but not limited to: (a) natural disasters (earthquakes, floods, wildfires, volcanic eruption); (b) grid failure or transmission infrastructure damage not caused by the Seller; (c) acts of war, terrorism, civil unrest, or sanctions; (d) pandemic or epidemic declared by WHO; (e) changes in law that make performance illegal (as distinct from merely more expensive, which is addressed under Rule EV-3 (Article 10.4)).

The affected Party shall notify the other Party within five (5) business days of becoming aware of a Force Majeure Event, specifying the nature, expected duration, and affected volumes. During a Force Majeure Event, the affected Party's obligations under Rule ED-1 (Article 5.1) shall be suspended. Deemed production for Force Majeure hours shall be calculated using satellite irradiance data for the affected Facility's location and the trailing 12-month Performance Ratio under Rule VT-4 (Article 9.5), and shall be added back to Actual Annual Volume for the Minimum Annual Production assessment under Rule VT-2 (Article 9.3). If a Force Majeure Event continues for more than one hundred and eighty (180) consecutive days, either Party may terminate this Agreement under Rule EV-5 (Article 10.6).

Linked Rules: ED-1, EV-3, VT-4, VT-2, EV-5, PY-3.

10.5 RULE EV-5 (Termination): Either Party may terminate this Agreement upon written notice in the following circumstances: (a) material unremedied breach persisting for ninety (90) days after written notice (including persistent non-payment of CfD Settlement Amounts under Rule PY-1 (Article 7.1) exceeding EUR 3,000,000); (b) insolvency, administration, or winding-up of the other Party; (c) a Force Majeure Event under Rule EV-4 (Article 10.5) continuing for more than one hundred and eighty (180) consecutive days; (d) a Regulatory Change Event under Rule EV-3 (Article 10.4) that the Parties cannot resolve and that renders the Agreement fundamentally uneconomic; (e) aggregate Contracted Volume falling below sixty percent (60%) of the Minimum Annual Production under Rule VT-2 (Article 9.3) for two (2) consecutive years, after adding back

excluded volumes.

Upon termination, the terminating Party shall pay a Termination Amount equal to the net present value of the remaining expected CfD Settlement Amounts for the unexpired Term, calculated using forward OMIE prices from the most recent OMIP futures curve and discounted at the EUR mid-swap rate plus 1.50%. If the Termination Amount is positive for the non-defaulting Party, it shall be payable by the defaulting Party. The credit support under Rule PY-5 (Article 7.6) may be drawn upon to satisfy the Termination Amount.

Linked Rules: PY-1, EV-4, EV-3, VT-2, PY-5.

10.6 RULE EV-6 (Grid Connection Milestones): The Seller shall maintain in full force and effect the Grid Connection Agreements with REE for both Facilities throughout the Term. If any Grid Connection Agreement is terminated, suspended, or materially amended by REE, the Seller shall notify the Buyer within five (5) business days. If a Grid Connection Agreement termination results in a Facility being unable to inject electricity for more than ninety (90) consecutive days, the affected Facility shall be excluded from the Contracted Volume under Rule VT-1 (Article 9.1), the Minimum Annual Production under Rule VT-2 (Article 9.3) shall be adjusted downward proportionally, and the Buyer may exercise its termination rights under Rule EV-5 (Article 10.6) if the remaining Contracted Capacity falls below 300 MW. Grid connection status also affects the GoO issuance eligibility under Rule CD-1 (Article 6.1).

Linked Rules: VT-1, VT-2, EV-5, CD-1, ED-2.

ARTICLE 11: INSURANCE

11.1 The Seller shall maintain, at its own expense, for the duration of the Term: (a) all-risks property insurance covering the full replacement value of the Facilities; (b) business interruption insurance with a minimum indemnity period of twelve (12) months; (c) third-party liability insurance with a minimum coverage of EUR 25,000,000 per occurrence.

11.2 The Seller shall provide the Buyer with certificates of insurance upon request and shall notify the Buyer within fifteen (15) days of any material change to insurance coverage.

ARTICLE 12: DISPUTE RESOLUTION

12.1 Any dispute arising out of or in connection with this Agreement shall first be submitted to senior management of both Parties for resolution within thirty (30) days.

12.2 If not resolved through senior management discussions, disputes relating to technical matters (including metering under Rule ED-5, production assessment under Rule VT-2, and Capture Rate under Rule VT-3) shall be referred to an independent technical expert appointed by mutual agreement or, failing agreement within fifteen (15) days, by the International Chamber of Commerce (ICC).

12.3 All other disputes shall be referred to arbitration under the Rules of the ICC International Court of Arbitration. The arbitral tribunal shall consist of three (3) arbitrators. The seat of arbitration shall be Paris, France. The language of arbitration shall be English. The arbitral award shall be final and binding.

ARTICLE 13: GOVERNING LAW

13.1 This Agreement shall be governed by and construed in accordance with the laws of the Kingdom of Spain, without regard to its conflict of laws principles.

13.2 Each Party irrevocably submits to the non-exclusive jurisdiction of the courts of Madrid, Spain, for the purposes of any ancillary proceedings (including interim relief) in connection with arbitration under Article 12.

ARTICLE 14: MISCELLANEOUS

14.1 Amendments to this Agreement shall be valid only if made in writing and signed by duly authorized representatives of both Parties.

14.2 Neither Party may assign its rights or obligations without the prior written consent of the other Party, such consent not to be unreasonably withheld or delayed. Notwithstanding the foregoing, either Party may assign to an Affiliate or to a lender as collateral in connection with

project financing, provided that the assignor shall remain jointly and severally liable.

14.3 This Agreement, together with its Schedules, constitutes the entire agreement between the Parties in relation to the subject matter hereof.

14.4 The failure of either Party to enforce any provision of this Agreement shall not constitute a waiver of such provision or the right to enforce it at a later time.

14.5 If any provision of this Agreement is held to be invalid or unenforceable, the remaining provisions shall continue in full force and effect, and the Parties shall negotiate in good faith a replacement provision that most closely achieves the original commercial intent.

14.6 Notices shall be in writing and delivered to the addresses specified in Schedule D by registered mail, courier, or email (with read receipt confirmation), and shall be deemed received upon the earlier of actual receipt or three (3) business days after dispatch.

SCHEDULES

SCHEDULE A: Facility Specifications and Grid Connection Points

- Facility Alpha: Extremadura Solar Plant, 300 MWp, approximately 545,000 bifacial monocrystalline silicon modules on single-axis trackers, Grid Connection Point at Trujillo 400kV substation (REE node TRUJ-400), RAIPRE registration number RE-10-EX-001234
- Facility Beta: Andalucía Solar Plant, 200 MWp, approximately 363,000 bifacial monocrystalline silicon modules on single-axis trackers, Grid Connection Point at Ecija 220kV substation (REE node ECIJ-220), RAIPRE registration number RE-41-AN-005678

SCHEDULE B: P50 Energy Yield Estimates (Independent Engineer: DNV Energy)

- Facility Alpha: P50 = 525 GWh/year (specific yield: 1,750 kWh/kWp/yr)
P90 = 478 GWh/year; P10 = 572 GWh/year
- Facility Beta: P50 = 370 GWh/year (specific yield: 1,850 kWh/kWp/yr)
P90 = 337 GWh/year; P10 = 403 GWh/year
- Portfolio P50 = 895 GWh/year; Portfolio P90 = 815 GWh/year

SCHEDULE C: Payment Instructions (to be completed prior to first settlement)

SCHEDULE D: Notice Addresses

- Seller: Helios Iberica Solar S.L., Paseo de la Castellana 95, Planta 15,
28046 Madrid, Spain

Attention: Director of Energy Management

Email: ppa-operations@heliosiberica.es

- Buyer: European Industrial Consortium GmbH, Friedrichstrasse 68,
10117 Berlin, Germany

Attention: Head of Energy Procurement

Email: energy-desk@eiconsortium.de

IN WITNESS WHEREOF, the Parties have caused this Agreement to be executed by
their duly authorized representatives as of the date first written above.

For and on behalf of For and on behalf of

HELIOS IBERICA SOLAR S.L. EUROPEAN INDUSTRIAL CONSORTIUM GmbH

Name: Carlos Martinez Navarro Name: Dr. Kristina Hoffmann

Title: Chief Executive Officer Title: Managing Director

Date: 15 April 2025 Date: 15 April 2025